

21. 9:00 AM CASE NUMBER: PS25-1449

CASE NAME: SCOTT JACOBY VS. STEVEN CHAN

HEARING IN RE: NOTICE OF MTN AND MTN TO VACATE OR SET ASIDE THE JUDGMENT; DEC IN SUPPORT OF MTN

FILED BY: CHAN, STEVEN L.

TENTATIVE RULING:

Summary

On May 19, 2026, Defendants Steven Chan and Anne Wong Chan ("Defendants") filed a Motion to Vacate or Set Aside the Judgment entered in favor of Plaintiff Scott Jacoby ("Plaintiff") on April 23, 2026. The Court having reviewed the moving papers, opposition, and the file herein; and good cause appearing; the Court hereby **denies** Defendants' motion.

Background

On April 23, 2026, the Court entered a stipulated judgment on the record in favor of Plaintiff and against Defendants regarding possession of real property located at 2205 Koa Court, Antioch, California 94509. The judgment, entered by agreement of the parties, and confirmed by the Court pursuant to Cal. Code of Civ. Proc. § 664.6, contained the following material terms:

1. Possession: Defendants were permitted to remain in possession of the property through no later than February 28, 2027, conditioned upon strict compliance with the payment obligations set forth herein;
2. Monthly Payments: Defendants were ordered to pay Plaintiff \$1,200.00 per month, due on or before the 5th day of each month, commencing March 5, 2026, and continuing through February 28, 2027. Payments were to be deposited into Bank Account, opened by Plaintiff for the express purpose of accepting these payments;
3. Waiver of Rights: Defendants waived any right to further contest ownership or possession of the property, and waived any right to appeal or seek a stay of execution;
4. Conditional Masking: The judgment would remain masked and restricted from public view so long as Defendants remained in full compliance with the judgment's terms;
5. Vacatur Upon Compliance: Upon Defendants' full and faithful fulfillment of their obligations, Plaintiff would submit an ex parte application requesting the Court vacate the judgment and dismiss the action with prejudice;
6. Enforcement Upon Breach: If Defendants breached the judgment at any point before February 28, 2027, the case would be unmasked and a sheriff's lockout enforced forthwith;
7. Property Condition: Defendants agreed to vacate the property in "broom clean condition" and leave all fixtures in place, with the right to remove only the refrigerator, washer, and dryer upon vacating.

The Court questioned both Defendants on February 6, 2026. Defendant Anne Wong Chan was

assisted by a certified Cantonese language interpreter. Both Defendants, under oath, testified that they understood the terms of the settlement agreement and understood that they were entering into a stipulated judgment. Such representations were made on the record. This Court made findings that the agreement is enforceable pursuant to the provisions of Cal. Code of Civ. Proc. § 664.6(a).

At the May 6, 2026 case management conference, Plaintiff sought to enforce the judgment, alleging that Defendants had failed to make the required monthly payments in violation of the judgment's terms. On July 9, 2026, the Court issued an *ex parte* order directing the issuance of a writ of possession and scheduling a sheriff's lockout, based on Defendants' material breach of the stipulated judgment.

Analysis

Defendants are Self Represented Litigants

The Court is aware that Defendants have been and continue to proceed without an attorney in this lawsuit. However, a self-represented party "is to be treated like any other party and is entitled to the same, but no greater consideration than other litigants and attorneys." *Williams v. Pacific Mutual Life Ins. Co.* (1986) 186 Cal.App.3d 941, 944. Thus, as is the case with attorneys, self-represented litigants must follow correct rules of procedure. *Nwosu v. Uba* (2004) 122 Cal.App.4th 1229, 1246-1247; see also *Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984-85 ("mere self-representation is not a ground for exceptionally lenient treatment. Except when a particular rule provides otherwise, the rules of civil procedure must apply equally to parties represented by counsel and those who forgo attorney representation."); see also *Leslie v. Board of Medical Quality Assurance* (1991) 234 Cal.App.3d 117, 121 (self-represented parties are held to "the same 'restrictive procedural rules as an attorney'"). Self-represented litigants are not entitled to special treatment and are required to follow the procedural rules that govern civil litigation. *McComber v. Wells* (1999) 72 Cal.App.4th 512, 522-523.

Nevertheless, "[t]rial judges must acknowledge that in *propria persona* litigants often do not have an attorney's level of knowledge about the legal system and are more prone to misunderstanding the court's requirements.' [Citation.] When one party has counsel and the other does not, the trial court 'should monitor to ensure the in *propria persona* litigant is not inadvertently misled, either by the represented party or by the court. ... [S]pecial care should be used to make sure that verbal instructions given in court and written notices are clear and understandable by a layperson. This is the essence of equal and fair treatment, and it is not only important to serve the ends of justice, but to maintain public confidence in the judicial system.'" *Petrosyan v. Prince Corp.* (2013) 223 Cal.App.4th 587, 594.

Applied here, there is no evidence that Defendants were misled by the Court or Plaintiff. While Defendants assert that there were procedural irregularities regarding the handling of their court papers, the Court does not find any irregularities that resulted in any prejudice to Defendants. Moreover, Defendants do not articulate any legal basis by which to challenge a judgment entered on April 23, 2026. Defendants have appeared in Court multiple times and the record contains admonishments by the Court advising Defendants to seek legal counsel, rather than filing motions which continue to relitigate this adjudicated case.

Legal Standards for Relief from Judgment

A. Relief Under Code of Civil Procedure Section 473

Code of Civil Procedure section 473 provides limited grounds for relief from judgments. The statute establishes two distinct mechanisms: (1) mandatory relief under subdivision (b) for defaults, default judgments, and dismissals based on attorney mistake, inadvertence, surprise, or neglect; and (2) discretionary relief under subdivision (b) for judgments taken against a party through the party's own mistake, inadvertence, surprise, or excusable neglect. (Code Civ. Proc., § 473(b); *In re Marriage of Hock* (1999) 70 Cal.App.4th 1292, 1298.)

B. Mandatory Relief Is Limited to Defaults and Dismissals

The mandatory attorney-fault provision applies only to "resulting default entered by the clerk," "resulting default judgment," or "dismissal entered against the party." (Code Civ. Proc., § 473(b).). Where, as here, the judgment was entered by stipulation of the parties pursuant to a settlement agreement, the mandatory relief provision is unavailable . (See *In re Marriage of Hock, supra* , 70 Cal.App.4th at 1298; *Yeap v. Leake* (1997) 60 Cal.App.4th 591, 595.)

C. Discretionary Relief Requires a Showing of Excusable Grounds

For stipulated judgments, such as this case, a party may seek only discretionary relief by demonstrating that the judgment was taken against them through "mistake, inadvertence, surprise, or excusable neglect." (Code Civ. Proc., § 473(b).). The moving party bears the burden of establishment by competent evidence that the judgment resulted from one of these enumerated grounds. (*Rapleyea v. Campbell* (1994) 28 Cal.App.4th 134, 138.)

Courts are particularly reluctant to grant discretionary relief from stipulated judgments because public policy favors the finality of settlements and voluntary agreements. (*In re Marriage of Hock, supra* , 70 Cal.App.4th at 1298.) Moreover, where a party has breached the judgment , courts are disinclined to disturb its finality, as the breach demonstrates a lack of good faith and undermines any claim to equitable relief. (See *Doe v. Luster* (2006) 145 Cal.App.4th 1393, 1400.)

D. Mandatory Relief Under Section 473(b) Is Unavailable

The judgment entered on April 23, 2026, was a stipulated judgment entered by agreement of the parties on the record, not a default or dismissal. Accordingly, the mandatory attorney-fault provision of section 473(b) does not apply. Defendants cannot avail themselves of mandatory relief regardless of whether an attorney's error contributed to the judgment's entry.

E. Defendants Fail to Establish Grounds for Discretionary Relief

To the extent Defendants seek discretionary relief, the motion fails for multiple independent reasons:

1. Failure to Identify Excusable Grounds

Defendants' moving papers fail to identify any specific mistake, inadvertence, surprise, or excusable neglect that justifies vacating the judgment. The Court is not permitted to speculate as to the basis for relief; the moving party must articulate and support by evidence the statutory grounds upon which relief is sought. Conclusory allegations of hardship, changed circumstances, or dissatisfaction with the agreed-upon terms do not satisfy the statutory standard. As mentioned previously, Defendants

articulate procedural issue relating to the filing of their papers. The Court does not find that there were any irregularities. Defendants have been provided with due process.

2. Breach of the Judgment Bars Relief

Even assuming *arguendo* that Defendants could identify some excusable basis for relief, their material breach of the judgment, specifically, their failure to make the required monthly payments commencing March 5, 2026, weighs heavily against granting discretionary relief. Defendants voluntarily entered into the stipulated judgment, obtained the benefit of extended possession through February 28, 2027, obtained the benefit of case masking, and waived their appellate rights in exchange for the opportunity to remain in possession conditioned upon payment. Having breached this agreement by failing to make payments, Defendants cannot now seek equitable relief from the Court to avoid the consequences of their noncompliance.

3. Prejudice to Plaintiff

Setting aside the judgment at this juncture would severely prejudice Plaintiff, who bargained for and obtained the judgment through settlement, forwent immediate possession and enforcement, and has been deprived of the bargained-for monthly payments. The purpose of section 473 is to provide relief from judgments taken through error or neglect—not to permit parties who have breached their obligations to escape the consequences of their noncompliance.

C. The Judgment Is Not Void

Defendants do not contend, nor does the record support, that the judgment is void under section 473(d). The Court had jurisdiction over the parties and subject matter, and the judgment was properly entered pursuant to the parties' stipulation. The Court retained jurisdiction to enforce the judgment. Absent a jurisdictional defect, the judgment cannot be attacked as void.

Ruling

For the foregoing reasons, Defendants have failed to establish grounds for relief under Code of Civil Procedure section 473. The mandatory relief provision is inapplicable to a stipulated judgment, and Defendants have not demonstrated mistake, inadvertence, surprise, or excusable neglect sufficient to warrant discretionary relief. Defendants' material breach of the judgment's payment terms further undermines their request for equitable relief.

1. Defendants' Motion to Set Aside/Vacate Judgment is **denied**.
2. The Writ of Possession issued on July 9, 2026, shall remain in full force and effect, and the sheriff's lockout shall proceed as scheduled.
3. Plaintiff shall prepare and e-file a proposed order no later than five (5) days from the date of this hearing that conforms with this ruling, attaching a copy of this ruling, and shall serve the order on Defendants.

22. 9:01 AM CASE NUMBER: C25-00677

CASE NAME: MARIEL HERNANDEZ VS. FORD MOTOR COMPANY

*HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO FORM INTEROGS

FILED BY: HERNANDEZ, MARIEL

TENTATIVE RULING:

Summary

Plaintiff Mariel Hernandez ("Plaintiff") filed a Motion to Compel Further Responses to Form Interrogatory Nos. 12.1, 15.1, and 17.1 from Defendant Ford Motor Company ("Ford"). The Motion is **continued** and referred to a Discovery Referee.

Background

Plaintiff Mariel Hernandez commenced this action on May 11, 2025, against Defendant Ford Motor Company, asserting claims under the Song-Beverly Consumer Warranty Act (Civil Code § 1790 et seq.) arising from the purchase or lease of a subject vehicle. Plaintiff alleges that during the warranty period, the vehicle developed defects in the transmission system that substantially impaired its use, value, or safety. According to the pleadings, Plaintiff presented the vehicle to Ford's authorized repair facilities on at least six occasions between April 2021 and November 2024 for repair of these alleged nonconformities. Plaintiff contends that despite multiple repair attempts, the defects persist and that Ford failed to conduct a pre-litigation investigation or offer repurchase or replacement as required by the statute. Plaintiff seeks repurchase of the vehicle, actual damages, civil penalties, attorney fees, and costs.

Following the filing of the complaint, the parties proceeded under Code of Civil Procedure section 871.26, which governs discovery in Song-Beverly actions filed after December 31, 2024. The parties served initial disclosures on June 13, 2025, and participated in a mediation session on June 26, 2025. Ford's corporate representative with settlement authority attended the mediation. Plaintiff's counsel was present, but Plaintiff Mariel Hernandez ***was not physically present***; rather, she was reportedly available to participate by telephone. The parties dispute whether Plaintiff's telephonic availability satisfied the statutory requirement that the plaintiff "attend the mediation in person or by remote means."

On January 19, 2026, Plaintiff served Ford with Judicial Council Form Interrogatories, specifically seeking further responses to Interrogatories 12.1 (identifying persons with knowledge of facts regarding the vehicle's defects and repairs), 15.1 (facts supporting affirmative defenses), and 17.1 (facts supporting claims and defenses). Ford responded with objections, contending that discovery was improper because mediation had not concluded under section 871.26. Plaintiff sent a meet and confer letter on January 19, 2026, requesting that Ford amend its objections and provide substantive responses. Ford responded on January 21, 2026, maintaining its position that mediation was incomplete. Plaintiff filed the instant motion to compel on March 2, 2026.

Plaintiff's Contentions

Plaintiff argues that Ford's responses to Form Interrogatories 12.1, 15.1, and 17.1 are deficient and fail to comply with Code of Civil Procedure section 2030.220. Plaintiff contends that the requested information is fundamental to a Song-Beverly action, including the identity of witnesses who